THIS INSTRUMENT PREPARED BY AND RECORD AND RETURN TO:

Joseph P. Covelli, Esq.
GrayRobinson, P.A.
201 N. Franklin Street, Suite 200
Tampa, Florida 33601

TERMINATION OF MEMORANDUM OF OPTION TO PURCHASE PROPERTY

THIS TERMINATION OF MEMORANDUM OF OPTION TO PURCHASE PROPERTY ("**Termination**") is made this 27th day of May, 2011, by **WESLEY CHAPEL LAKES, LTD.,** a Florida limited partnership ("**Seller**") and **CLEARWATER BAY ASSOCIATES, INC.,** a Florida corporation ("**Buyer**").

RECITALS

A. Seller and Buyer entered into that certain Option to Purchase Property dated as of October 4, 1999, as amended (the "**Option Agreement**") pursuant to which Buyer is the holder of certain rights (the "**Rights**") with respect to certain real property (the "**Property**"). Notice as to the Rights is given in that certain Memorandum of Option to Purchase Property (the "**Memorandum**"), dated October 4, 1999, recorded in Official Records Book 4302, Page 678, Public Records of Pasco County, Florida.

B. Seller and Buyer desire to terminate the Memorandum as it relates solely and exclusively to the real property legally described on Exhibit "A" attached hereto.

NOW, THEREFORE, Seller and Buyer hereby give notice that the Memorandum is hereby terminated with respect to the real property described on Exhibit "A" attached hereto (the "**Released Property**").

It is understood and agreed that this Termination covers only the Released Property described on "Exhibit A" and that the Option Agreement and the Memorandum shall remain in full force and effect except as to the Released Property herein released.

[SIGNATURES APPEAR ON NEXT PAGE]

IN WITNESS WHEREOF the undersigned have entered into this Memorandum as of the date first set forth above.

SELLER:

WESLEY CHAPEL LAKES, LTD., a Florida limited partnership

By: **Wesley Chapel Lakes, Inc.,** a Florida corporation, its sole general partner

By: _____
Name: Jared D. Brown
Title: President

STATE OF FLORIDA)
)
COUNTY OF Pinellas)

Sworn to and subscribed before me this 27th day of May, 2011, by Jared D. Brown, as President of Wesley Chapel Lakes, Inc., a Florida corporation as sole general partner of Wesley Chapel Lakes, Ltd., a Florida limited partnership, on behalf of the limited partnership. He ☒ is personally known to me or ☐ has produced _____ as identification.

JENNIFER DOHERTY
MY COMMISSION #DD884020
EXPIRES: JUL 01, 2013
Bonded through 1st State Insurance

_____
Name: Jennifer Doherty
Notary Public, State of Florida
My Commission Expires: 7-1-13

BUYER:

CLEARWATER BAY ASSOCIATES, INC. a Florida corporation

By: _____
Name: Lee E. Arnold, Jr.
Title: President

STATE OF FLORIDA)
)
COUNTY OF Pinellas)

Sworn to and subscribed before me this 27th day of May, 2011, by Lee E. Arnold, Jr., as President of Clearwater Bay Associates, Inc., a Florida corporation, on behalf of the corporation. He ☒ is personally known to me or ☐ has produced _____ as identification.

_____
Name: Jennifer Doherty
Notary Public, State of Florida
My Commission Expires: 7-1-13

Exhibit A

RELEASED PROPERTY

ATTACHED

EXHIBIT A

MEADOW POINTE III
BEARDSLEY DRIVE EAST
OF MEADOW POINTE BOULEVARD

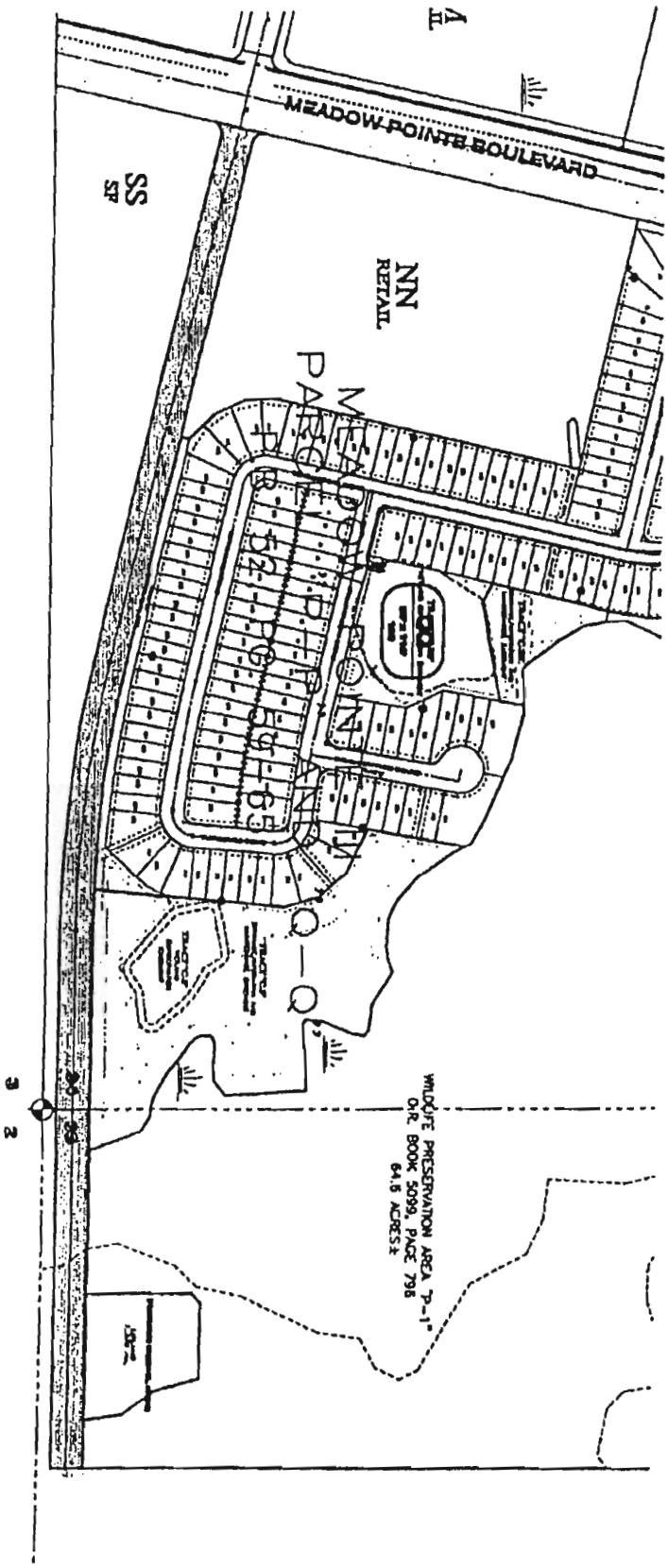
DESCRIPTION: A parcel of land lying in Sections 34 and 35, Township 26 South, Range 20 East, Pasco County, Florida, and being more particularly described as follows:

Commence at the Southeast corner of said Section 34, run thence along the East boundary of said Section 34, N.00°09'58"E., 30.00 feet to the **POINT OF BEGINNING**; thence along a line lying 30.00 feet North of and parallel with the South boundary of the Southeast 1/4 of said Section 34, S.89°59'07"W., 391.20 feet to a point of curvature; thence Westerly, 591.11 feet along the arc of a curve to the right having a radius of 2535.00 feet and a central angle of 13°21'37" (chord bearing N.83°20'04"W., 589.77 feet) to a point of tangency; thence N.76°39'16"W., 1145.85 feet to a point of curvature; thence Southwesterly, 39.27 feet along the arc of a curve to the left having a radius of 25.00 feet and a central angle of 90°00'00" (chord bearing S.58°20'44"W., 35.36 feet) to a point of cusp on the Easterly right-of-way line of MEADOW POINTE BOULEVARD, as recorded in Official Records Book 6330, Page 1471, of the Public Records of Pasco County, Florida; thence along said Easterly right-of-way line, N.13°20'44"E., 120.00 feet to a point of cusp; thence Southeasterly, 39.27 feet along the arc of a curve to the left having a radius of 25.00 feet and a central angle of 90°00'00" (chord bearing S.31°39'16"E., 35.36 feet) to a point of tangency; thence S.76°39'16"E., 645.61 feet to the Southwesterly corner of MEADOW POINTE III PARCEL "PP" & "QQ", according to the plat thereof as recorded in Plat Book 52, Pages 59 through 65, inclusive, of the Public Records of Pasco County, Florida; thence along the Southerly boundary of said MEADOW POINTE III PARCEL "PP" & "QQ", the following two (2) courses: 1) continue, S.76°39'16"E., 500.25 feet to a point of curvature; 2) Easterly, 490.00 feet along the arc of a curve to the left having a radius of 2465.00 feet and a central angle of 11°23'22" (chord bearing S.82°20'57"E., 489.20 feet) to the Southeasterly corner of said MEADOW POINTE III PARCEL "PP" & "QQ"; thence continue Easterly, 84.79 feet along the arc of said curve to the left having the same radius of 2465.00 feet and a central angle of

01°58'15" (chord bearing S.89°01'45"E., 84.78 feet) to a point of tangency; thence along a line lying 100.00 feet North of and parallel with the aforesaid South boundary of the Southeast 1/4 of Section 34, N.89°59'07"E., 391.17 feet; thence along a line lying 100.00 feet North of and parallel with the South boundary of the Southwest 1/4 of the aforesaid Section 35, N.89°56'25"E., 780.46 feet; thence S.00°10'00"W., 70.00 feet; thence along a line lying 30.00 feet North of and parallel with said South boundary of the Southwest 1/4 of Section 35, S.89°56'25"W., 780.21 feet to the **POINT OF BEGINNING.**

Containing 4.707 acres, more or less.

MEA-MP-007
P:\Wesley Chapel Lakes\Master Plan\Legal\WCL-BEARDSLEYEAST-DS
JMG November 15, 2003


MEADOW POINTE BOULEVARD
NN
RETAIL
MEADOW POINTE
PARCEL 1
P-1
WILDLIFE PRESERVATION AREA "P-1"
O.R. BOOK 5099, PAGE 798
64.6 ACRES±